
1916 • 2026

All Zoning Is New York City Zoning

*How a Custom-Tailored Solution for Manhattan
Has Shaped Communities Across America for a Century*

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Ever and ever upward grows the beetling skyline of the city, ever increasing in height the structures of steel and stone and concrete; structures forced upward by the forcing process of insistent demand of commercial and business interests for coigns of vantage on Manhattan's narrow, congested island.... [W]ill this upward trend eventually make the city a metropolis of cliff dwellers, each looking down into a sunless canyon?

— *New York Times*, May 10, 1908

Introduction

ALL AMERICAN ZONING is New York City zoning — Manhattan zoning, to be precise. Even more precisely, all American zoning is based on a bespoke solution to the concerns of business owners on Fifth Avenue in Manhattan. Every American city, town, village, township, and county with zoning laws can trace its origin to early twentieth-century New York City.

Between 1913 and 1916, a group of New York City civic leaders devised a regulatory system that would shape America socially, economically, physically, and psychologically for the next century. Devising a creative solution to the issues of their day, these men could not have known that they were establishing a legal construct that would shape the built environment of an entire nation and impact nearly every decision we make in our daily lives, including where and how we live, the quality of our life, the look and feel of a place, the amount of light we see, and the quantity and quality of the air we breathe. From our city centers to our suburbs, every part of the built environment in which we exist and with which we interact is regulated, calibrated, choreographed, and curated through zoning laws.

It took six years for New York City zoning to make its way to a small suburb on the edge of Cleveland, Ohio, called Euclid. Four years later the United States Supreme Court declared zoning a lawful exercise of the police power. And the next hundred years is history.

While zoning has been in place in America for over a century, it remains an experiment. Never in human history have humans lived in such a regulated environment. And never have we existed in single-use buildings separated from other uses, in single-story buildings surrounded by open space (often used for vehicular parking), or in buildings not accessible on foot. In no other time in human history have we worked long distances from where we live.

Air conditioning, the automobile, and mass transit made possible ways of living that would not previously have been possible.

Collectively, as a society, with varying degrees of participation and exclusion, we agreed to subject ourselves to a set of rules that could be commonly and uniformly applied irrespective of context. Those rules performed as they were intended. They created uniform development patterns, reduced the supply of housing for purposes of reducing crowding, and established norms that dictated building design.

As we move into the second century of zoning and reflect on the last century of zoning, it is important to revisit its origins to understand its underlying assumptions, so that we can assess whether they remain true or need to be reconsidered. Understanding how we arrived here is critical to determining where we are going with zoning in the next century.

I

A Common Enemy

“All limits were removed from the possible height of skyscrapers by the contrivance known as the traction elevator,” declared the *New York Times* on March 1, 1908. By that year, the citizens of New York City had a new common enemy — the skyscraper. The 700-foot-tall Metropolitan Life building in New York’s Madison Square was coming online to replace the 47-story Singer Building (612 feet) as the tallest building in the world. By 1913, a new tallest building was crowned — the Woolworth Building at 792 feet. As famed architect Cass Gilbert (architect of the United States Supreme Court building in Washington, D.C.) put it: “the skyscraper is a new problem.”¹

The only height limitation on buildings in New York City was a restriction on the height of apartment and tenement houses to 1½ times the width of the widest abutting street.² It may well be accurate to say that the invention of the skyscraper led to the creation of a system of zoning, but it is also accurate to conclude that industrialization led to zoning. The convergence of the two issues on a narrow island in southern New York resulted in one of the most ambitious regulatory schemes in history.

As the island of Manhattan became more congested and ever more in demand, the solution was to go up. “There will be no room on Manhattan for anything but skyscrapers,” wrote the *New York Times* on March 31, 1907. The Committee on Congestion of Population in New York proposed building code revisions that included, among others, controlling height by taxing buildings by floor.³ “Skyscrapers are not only subject to heavy site assessment, but have to use artificial light except between 10 A.M. and 3 P.M.... [T]hey cast a gloom over the street and over their own lower stories.... [T]hey raise street temperatures and diminish natural drafts,” opined the *New York Times* on August 7, 1908. “Practically all office buildings

hereafter to be erected in Manhattan downtown and as far up as Fifty-ninth Street will be ‘skyscrapers’.... [T]he Building Code, in its specifications as to height and dimensions of tall buildings, will give free scope to the architects and builders,” declared the *New York Times* on August 9, 1908.

Famed architect Cass Gilbert summarized the necessity of building height regulations:

The situation in this city is a peculiar one... it presents problems not to be found in the same form, perhaps, in any other city in the world. New York being a business center and the gateway to the Western world, nearly every important business organization finds it must have an office here. It is to their interest to be on an important business street or near the financial center. Consider, with this fact, the location of the business section on a narrow island and the high values placed on real estate. The skyscraper, its height and floor area, become questions of business expediency, probable income, and a profitable investment — an economic question, a matter of obvious necessity.⁴

The skyscraper was the culprit of many ills, particularly those associated with blocking the air and light for adjacent and nearby shorter buildings. Unregulated, it posed a new problem for property owners, namely competition. The race to the top to meet skyrocketing demand for building space in Manhattan meant that some property owners would be left in the dark — literally and figuratively. Some argued that new height limits would disadvantage those property owners that had not already taken advantage of limitless heights, and that limiting the supply of building space would curb the city’s meteoric growth and suppress property values. New York City architect Ernest Flagg, architect of a proposed 1,000-foot-high Equitable Building, put it this way:

Our land values have been fixed on the basis of high buildings. To set a low limit of height now would be not only greatly to reduce the available area of floor space for the future and so interfere with the city’s growth, but to bring about a great shrinkage in

values. Such a limit would also discriminate unjustly, and I think unnecessarily, against those owners who have not already built, and in favor of those who have built and preempted their neighbors' light.⁵

Flagg's proposed solution was more nuanced than the citywide height limitations being bandied about. He proposed instead establishing a ratio of the height of a building to the width of the street, and allowing height on only a portion of the property. Presumably, this would allow a portion of the property to be preserved for the entry of light and air. He had seen this approach in European cities, specifically in German cities.

The skyscraper presented a common enemy problem. It turned neighboring property owners into common enemies vying for the natural resources of light and air. Famed New York City lawyer Edward Bassett summarized the problem this way: "The individual landowner could not be blamed because if he did not take advantage of his neighbor, his neighbor would take advantage of him.... [T]he result was that the lack of regulation stimulated each owner to build in the most hurtful manner."⁶ To Bassett, zoning is a social and economic bargain: "One owner gives up something of his absolute ownership and use and in return he receives something from his neighbor."⁷

Others cautioned that skyscrapers were economically unsound. New York City architect J. Hollis Wells of the firm Clinton & Russell seemed to struggle with the economics of placing a building disproportionately tall relative to the area of the lot:

The average lot on which a skyscraper is built... is too small to stand a very high building. A lot of say 100 by 100 feet may stand a twenty-story building, but when the building put up on a plot of land costs far more than the land itself the equity in the property is not safe. Loan companies, as a general thing, don't like to loan money on buildings, the cost of which greatly overbalances that of the land. Skyscrapers should be put up only when they are sound commercial propositions.⁸

C. Grant La Farge of the architecture firm Heins & La Farge may have most accurately predicted the solution: “Some way must be found to prevent the present crowded condition of our tall buildings... I think it very likely that we shall drop into some such scheme as Mr. Flagg suggests — that of having towers, possibly set back from the building lines to gain the benefits of light and air.”⁹ Architect Pierre Le Brun disagreed: “...towers need not be set back from the façade....”¹⁰ The debate began with the designers, but it did not end there.

By the end of 1908, the Aldermen’s Committee on Buildings held a public hearing on whether skyscrapers should continue to be allowed at all in the city and whether height regulations should be considered.¹¹ Skyscraper opponents argued that “skyscrapers are no longer necessary but are a menace to the health and safety of the city.”¹² The committee was looking to Washington, D.C., and Boston, as well as European cities, for guidance.¹³ On May 17, 1909, the United States Supreme Court upheld Boston’s height limits, effectively greenlighting the idea in New York City.¹⁴

By 1910, the New York City Board of Brokers weighed in on building heights, citing height limitations already found in Boston, Baltimore, Indianapolis, and Washington, D.C. They argued that New Yorkers were paying the price for lax regulations in their city through loss of light and health.¹⁵ It was the business owners on Fifth Avenue who put height regulations into full motion.

The Fifth Avenue Commission was most concerned with preserving the historic commercial character of the tony retail and mansion district. For over a century, Fifth Avenue had been New York City’s Main Street — its primary shopping street and home to some of its wealthiest residents. As competition for building space in Manhattan reached a fever pitch during the industrial revolution, Fifth Avenue was prime territory for commercial expansion. Warehouses and manufacturing facilities were causing traffic congestion, pollution, and crowding that threatened the traditional

way of life on Fifth Avenue. Four- and five-story buildings were being replaced with taller buildings at a rapid pace in the early 1900s.¹⁶

Fifth Avenue below Twenty-third Street has to a large extent lost its old-time character of select retail commercial stores, due chiefly to the development of the avenue and the side streets with large structures occupied by clothing and kindred firms. The blocks from Fourteenth to Twenty-third Streets during many hours of the day are so congested with garment workers as to be almost impassable to the average pedestrian, and this condition has driven many of the retail establishments further up the thoroughfare.¹⁷

Fifth Avenue Commission Chairman, architect Arnold W. Brunner, urged action on height limits on Fifth Avenue to “prevent what is now one of the finest retail shopping streets in the country from degenerating into a canyon of skyscrapers.”¹⁸

Business owners felt threatened but possessed no regulatory tool to control the rapid pace of change to the Avenue. The issues they were facing on Fifth Avenue were real and existential, but all of Manhattan was facing these pressures. While the men of Fifth Avenue had influence, addressing only their concerns would not result in a comprehensive solution to the city’s land use issues.

The Fifth Avenue group proposed capping the height of buildings along Fifth Avenue to allow for twelve-story buildings, up to 150 feet in height.¹⁹ As Manhattan Borough President George McAneny put it in 1912: “There is a growing sentiment in the community to the effect that the time has come when effort should be made to regulate the height, size, and arrangement of buildings erected within the limits of the city of New York.”²⁰ In that year, the Board of Estimate (which was abolished by the United States Supreme Court as unconstitutional in 1989)²¹ put forth two ordinances: one that proposed the Fifth Avenue Commission’s recommendations about height on Fifth Avenue, and one to establish a commission to study citywide height limits.

Constitutional questions were raised surrounding the Fifth Avenue proposal and whether such limits would exceed the state's police powers.²² The Fifth Avenue Commission's lawyer, citing decisions from high courts in New York, Massachusetts, and Maryland, believed that such regulations would be upheld as a valid exercise of the city's police powers.²³ His thinking would ultimately be confirmed by the United States Supreme Court.

The debate had been going on long enough. With increasing development pressures from all corners of Manhattan, action was being demanded, and the issue was being studied in detail. The first citywide commission on the subject was established.

II

The First Citywide Commission

On March 18, 1913, the *New York Times* reported on the establishment of the Advisory Commission on the Height of Buildings, which was created to advise the Board of Estimate on this matter. The all-male Commission included six subcommittees by topic.

The following committee has been appointed by the Allied Real Estate Interests for the purpose of co-operating with the advisory committee to be appointed by the Board of Estimate and Apportionment and the committee appointed by the Chamber of Commerce on the subject of proposed legislation to limit the height of buildings in the city of New York. Darwin P. Kingsley, President New York Life Insurance Company; Elbridge G. Snow, President Home Fire Insurance Company; Clarence H. Kelsey, President Title Guarantee and Trust Company; Charles S. Brown of the Douglas Robinson-Charles S. Brown Company; Louis V. Bright, President Lawyers' Title Insurance and Trust Company; William H. Chesebrough, President Alliance Realty Company; and Allan Robinson, President Allied Real Estate Interests, (ex-officio). Walter Lindner, Solicitor of the Title Guarantee and Trust Company, will act as counsel to the committee. The committee also proposes to add to its number at least one well-known New York City architect, whose experience especially qualifies him as an expert upon the subject.²⁴

HEIGHTS OF BUILDINGS COMMISSION

EDWARD M. BASSETT, Chairman

EDWARD C. BLUM	C. GRANT LA FARGE
EDWARD W. BROWN	NELSON P. LEWIS
WILLIAM H. CHESEBROUGH	GEORGE T. MORTIMER
WILLIAM A. COKELEY	LAWSON PURDY
OTTO M. EIDLITZ	ALLAN ROBINSON
ABRAM I. ELKUS	AUGUST F. SCHWARZLER
BURT L. FENNER	FRANKLIN S. TOMLIN
J. MONROE HEWLETT	LAWRENCE VEILLER
ROBERT W. HIGBIE	GAYLORD S. WHITE

GEORGE B. FORD, Secretary

The Heights of Buildings Commission, with Edward M. Bassett as chairman and George B. Ford as secretary.

Various interest groups, including real estate groups, trade groups, and general contractors, were prepared to be heard on the matter.

In August 1913, Lawson Purdy, President of the City's Tax Department, opined:

One with an observant eye may walk through the streets of New York and find thousands of examples of the destruction of building values by the license we have permitted to one man to damage his neighbors. Owners of real property are entitled to be protected in the free use of their own land with adequate air and sunlight. If they are not so protected in the free use of their own land they are often actually forced into erecting buildings which damage their neighbors and often prove unprofitable to themselves.²⁵

Purdy's argument was one of economic equity. He believed that the unregulated free market would leave New Yorkers with no choice but to act in their own interests to the detriment of their neighbors. This was an untenable situation requiring creative solutions.

By this time, numerous cities, among them Boston, St. Louis, Baltimore, Indianapolis, Denver, and Portland, already had height

limits on the books. New York City's problem was of a larger scale than any of these cities, yet building heights, other than as applied to apartments and tenements, remained unregulated.

That summer there was also debate over whether height limits should be adopted only for Fifth Avenue or citywide. "If legislation were enacted restricting the height of buildings on Fifth Avenue alone," said Bruce M. Falconer, counsel for the Fifth Avenue Association, "and limitation were placed upon buildings elsewhere, some question might be raised as to its constitutionality, because of the discrimination in favor of one avenue as against all other avenues and streets. The issue would simply narrow itself down, however, to whether a discrimination was reasonable and proper, and we believe that, since Fifth Avenue is in many ways unique, this could be well shown to be the case."²⁶ Attorney Falconer's argument was also rooted in equity. He posed the very pressing question of whether treating Fifth Avenue real estate differently from the rest of the city could be challenged as a violation of the United States Constitution's guarantee of equal protection.

A July 13, 1913, update from Edward M. Bassett, Chairman of the Advisory Commission on the Height of Buildings, indicated that the Commission was hearing nearly unanimous feedback from various interest groups around the city in favor of height limits. He let everyone know that the Commission was taking the rest of the summer off and would not have any recommendations until at least that fall.²⁷

That same month, Arnold Brunner, Chairman of the Fifth Avenue Commission, penned a letter to Bassett pleading for the Commission to "save Fifth Avenue from ruin" by recommending height limit legislation.²⁸

In September 1913, Frank B. Williams, Special Counsel to the New York Heights of Buildings Commission, offered German cities, including Frankfurt, as examples of how to use a system of zoning to control building heights in New York City: "Here, then, we have a rich, prosperous, rapidly growing city that has flourished without tall

buildings; and, to some degree, without congestion. This has been done under regulation, by zones. German city planners, as a rule, say that it can be accomplished in no other way.”²⁹ Williams argued that German cities provided a how-to on accommodating density without significant height. He opined again in December 1913, when he advocated for a system of zoning in New York City based on a system in Berlin:

In olden days overcrowding, bad air, lack of light and sun were accepted as an inevitable part of city construction; by most people they were not even known to be evils. Under these conditions cities grew, and now we demand light and air in our cities as necessities of life.... New York’s congestion is intense, but exists in only a small part of the city. Manhattan has 92,749 buildings. Their average height is 4.8 stories. Only 122 of them are over sixteen stories high. Nearly all of them are together in the lower end of the island, built to the capacity of the lots they stand on. Nowhere in Berlin are buildings so high, nor do they cover so much of the lot as in downtown New York; but almost all of Berlin is overcrowded.³⁰

By November 1913, the Commission was widely anticipated to establish a “zone” system of building height restrictions much like in Germany.”³¹ The term “zone” was becoming part of the New York City lexicon and was widely being used to describe a system within which the building height regulations could be housed.³²

By the beginning of 1914, developers were rushing to submit plans for super-tall buildings before any height restrictions were imposed. In one such instance, plans for the 51-story Pan-American States Association Building, which would have been the tallest building of its day, were filed on a site the applicant did not control.³³ It was clear that the tall building frenzy was accelerating.

The report of the Building Heights Commission was issued on December 23, 1913. In the nearly 300-page report, the Commission hailed its outreach to more than 1,325 organizations and touted that it “carried on our work with much diversity of opinion, as might be expected in a commission composed of men of many different

callings.”³⁴ It analyzed a Manhattan of nearly 93,000 buildings on 14,038 acres, the vast majority of which were dwellings and stores between three and six stories.³⁵

The Commission recommended height districts, identified as “A” through “H,” controlling overall building height and prescribing setbacks at certain heights.³⁶ The Commission also recommended dividing the city into districts by use: “It is clear, however, that any system of building control would be defective unless in addition to regulation of height, yards, and courts, regulations be imposed on the location of industries and buildings designed for certain uses.”³⁷ The Commission studied use districts in Baltimore, Milwaukee, Minneapolis, and Los Angeles.³⁸ Ultimately, the Commission recommended adoption of height and use districts for the City of New York to protect against loss of light and air and incompatible land uses.

The first commission’s work was done. Now it was time for a second commission to figure out how to make it work.

III

The Second Commission

Following the initial commission and its report, nineteen men were appointed to the Commission on Building Districts and Restrictions by Manhattan Borough President George McAneny.³⁹ The Commission met in the Equitable Building at 120 Broadway in Lower Manhattan.⁴⁰ Its purpose was to advise the Board of Estimate on the need for building height limitations not only on Fifth Avenue, but citywide. Members of the Commission included architects, real estate developers, insurance executives, taxation experts, city planners, and local political operatives. The most famous of them was attorney Edward M. Bassett, who served as Chair.

Bassett, a Brooklyn native, was a Columbia University-educated lawyer who was active in Democratic politics. He served on his local school board and one term as a United States Representative. He went on to serve on New York City commissions, including the New York Public Service Commission and the Brooklyn Committee on City Plan. As a lawyer, Bassett was a perfect appointee for the position of Chair of the Building Heights Committee. Following adoption of the 1916 zoning ordinance, he served on the city's Planning Commission.

Bassett summarized the issue in terms of negative externalities, or spillover costs. He was the first speaker in favor of a commission and said in part:

Every landowner in this city who puts up a new building, whether a detached residence, apartment house, or skyscraper, wishes that its light and air might be protected for fifty years, and he would be willing to leave air and light spaces if he had any assurance that his neighbor would do the same. The trouble is that if he leaves any space unoccupied it is an invitation to his neighbor to build so as to take all the benefit. Therefore every

landowner builds for all his plot is worth. The result is that one building kills another, and it in turn is killed by the next building. Real estate owners from all the boroughs, from vacant districts as well as skyscraper districts, appeared before the Heights of Buildings Commission, and with substantially one accord said that the real estate interests of the city needed some protection against present chaotic conditions.⁴¹

In addition to Bassett, the members included the following:

- **James E. Clonin**, Vice-Chair, was in the building materials business and had been active in Queens Borough politics, at one point running unsuccessfully for Queens Borough President.
- **Otto M. Eidlitz**, a Fifth Avenue resident, was a builder.
- **Burt L. Fenner**, of Queens, was a prominent American architect and partner at the legendary firm McKim, Mead & White.
- **Edward R. Hardy** was a member of the Board of Fire Underwriters.
- **Richard W. Lawrence**, of the Bronx, was President of the Piano Manufacturers' Association.
- **Alrick H. Man** was a prominent New York attorney and real estate developer. He was instrumental in developing the Queens neighborhoods of Richmond Hill and Kew Gardens, and was a member of the New York City Board of Education.
- **Alfred E. Marling**, of Manhattan, was a Canadian-born American businessman who served as president of Horace S. Ely & Co. and later as president of the Chamber of Commerce of the State of New York. He was also chairman of the Mayor's Commission on Taxation.
- **George T. Mortimer**, of Manhattan, was Vice President of the United States Realty and Improvement Company.
- **J. F. Smith** was president of the Richmond Savings Bank.
- **Walter Stabler** was Controller of the Metropolitan Life Insurance Company.

- **Franklin S. Tomlin** was Secretary of the Brooklyn Central Federated Union.
- **George C. Whipple** was a sanitary engineer.
- **William G. Wilcox** was President of the Staten Island Civic League.
- **Robert H. Whitten** was Secretary of the City Planning and Zoning Commission and later served as an influential planning and zoning consultant in Cleveland and Boston.

The Commission was not without its opponents, who accused it of lacking transparency. Arnold W. Brunner, ex-President of the New York Chapter and Chairman of the Fifth Avenue Commission, addressed the opponents sharply in the spring of 1914:

Some of its opponents talk as though there was some nefarious scheme being railroaded through, and efforts were being made to hamper real estate interests without letting the public know. Nothing could be more absurd. The proposal to limit the height of buildings, arose I believe with the Fifth Avenue Commission, of which I had the honor to be appointed Chairman by President McAneny. We made a careful study of the problems presented by the Avenue and drew sketches to show exactly the effect of buildings of varying height on either side of it. You can see as they grow higher, how the Avenue becomes more and more of a canyon.... Then Mr. McAneny had the Heights of Buildings Commission appointed. It has examined the problem scientifically. It has made a report, which is anything but radical, and it is now submitting its proposal to a public hearing and discussion. That does not seem much like railroading a plan through secretly, does it?⁴²

Two prevailing justifications were put forth for height limitations: (i) public health and (ii) economic equity. The balance of the economic equities was consistently between real estate investors and real estate speculators.

Another point which Mr. Brunner raised against the indiscriminate erection of skyscrapers was the effect it had on real estate values. He mentioned the way in which with the uptown movement of the retail district, values had been destroyed in large and formerly populous centers. He spoke of the excess of office room in the downtown section due to the excessive number of new skyscrapers, and he referred to the introduction of factories into lower Fifth Avenue, which brought with it street conditions that had driven out many of the old-established tenants. What is the good of all this disturbance? The real estate speculator profits, but not the real estate investor. The speculator gets his commissions and grows rich, but the investor sees himself ruined. We need stability of values. We want to have the city anchored. Downtown the financial district provides a sufficient anchorage, but uptown there comes a wave of fashion, old-established businesses feel they must sacrifice their building and go elsewhere, and others are driven away by new conditions.

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Dr. Henry W. Berg, representing the United Real Estate Owners' Association, threatened to sue to stop the Commission from being formed.⁴⁴ Numerous real estate operators, construction companies, and trades opposed the Commission, viewing it as a threat to the robust free-market conditions of unregulated New York City building heights.

Many arguments were made, including by numerous building owners and trade associations, that such height limits would be confiscatory of property values. A common retort was that the value of light and air outweighed the speculative property values of a few.

Reginald Pelham Bolton, an author and engineer who performed many digs of Manhattan soil, made a careful study of building construction problems:

I observe that some criticisms and complaints are made of the proposed limitation of the height of buildings based on the idea that such restriction will have the effect of reducing the value of real estate. It is on the contrary demonstrable that reasonable restrictions such as those proposed will have a most beneficial

effect in enhancing the valuable asset of light and air. Nor is it strictly true that the restriction proposed limits height. Its effect is to restrict height at the building line, and those who are foolish enough to want to build excessively tall buildings or to construct monumental towers can still do so if they wish to burden their property with such unremunerative incumbrances.⁴⁵

There was an effort in Albany to restrict the Board of Estimate's power to enact height limits, on the basis that it would hurt the tax base of an already expensive city to operate. "Michael J. Horan, have filed with the Cities Committee of the Legislature the following statement: 'The passage of a height-limiting law will result in reducing values fixed on ability to multiply floor or rentable space. This reduction made in one district will have to be compensated for in another, so that either the rate of taxation will have to be increased, values in outlying districts made higher to meet the deficiency, or both these plans must be resorted to.'"⁴⁶

On December 15, 1915, Commission Secretary Robert H. Whitten announced public hearings on new residence zones and height limits. Following the hearings, the Commission issued a 299-page report to the Board of Estimate. Its conclusions held that comprehensive districting was a constitutional exercise of the police power, and it recommended dividing the entire city into use, height, and area districts, with height limits tied to street width and uniform regulations applying to each class of building within a district.

At 4:30 p.m. on July 25, 1916 — a partly cloudy day with gentle to moderate south winds and a high temperature of 80 degrees — the Board of Estimate adopted the city's first Zoning Ordinance, eight years after the initial public debate about building heights was sparked by the 700-foot-tall Metropolitan Life Building. It was heralded as "the most important step in the development of New York City since the construction of the subways."⁴⁷ Twenty-six plans were submitted the day the law took effect, presumably to beat the new law before it took effect.⁴⁸

IV

The Immediate Aftermath

The effects of the New York City Zoning Resolution were almost immediate. In one instance, a project was shelved due to the residential zoning of a property that was planned to be a commercial development.

Owing to the recent enactment of the building height and zoning law it was said yesterday that Steinway & Co. may not consummate the contract of sale recently made for the property at 109 to 118 West Fifty-seventh Street, running through to 112 to 114 West Fifty-eighth Street. Plans for the new Steinway building there, a ten-story structure, were filed a few days ago by the architect, W. K. Benedict. The chief difficulty lies in the new zoning restrictions, which aim to keep the Fifty-eighth Street block for residential character. At the offices of the firm it was admitted that the project might be abandoned, although nothing definite has yet been decided.⁴⁹

Other projects seem to have been likewise caught off guard by the new regulations. Numerous architects submitted projects in the days following the enactment of the ordinance.⁵⁰ They evidently did not realize that the ordinance would take effect immediately, assuming it would take effect some period after passage. They were incorrect, and all their submittals were late. Not certain how to handle such a situation, the city erred on the side of caution and extended the time for submittals under pre-zoning rules through the end of 1916.⁵¹

Generally, though, the reaction to the Zoning Ordinance was positive, and it was cited as preserving property values by creating predictable outcomes. One issue it positively addressed was the location of garages next to residential uses.⁵²

The debate about zoning continued around the time of the passage of the ordinance. Planners were still grappling with whether

private covenants could regulate as well as governmental interference through zoning. However, city planning was seen as incomplete without regulation. “There can be no city plan until the uses of the various portions of a city can be determined with some degree of definiteness,” said Lawrence Veiller, Secretary of the New York City–based National Housing Association, in a speech at the Eighth National Conference on City Planning in Cleveland in the summer of 1916.⁵³ Veiller argued that zoning was more permanent and less vulnerable to the whims of private parties than private restrictions, which were based merely on contract principles that could be set aside by a court or by agreement of the parties.⁵⁴ “There can be no doubt that the time has come in America when we should call upon the state to use its great power and prohibit those things that we know are clearly injurious to the community.”⁵⁵

Zoning was so popular in New York City that the following mayoral election was predicated upon the next mayor and administration not overturning or nullifying the Zoning Ordinance.⁵⁶ It appeared that unless a court threw it out, which was unlikely given the legal vetting before its passage, zoning was there to stay in New York City. “Much to the surprise of the members of the commission and its friends, the commission has been criticized pretty generally, not by the uplifters and city planners, but by real estate men and property owners — not because its recommendations were too drastic but because they were not severe enough.”⁵⁷ “[I]t is a remarkable fact that throughout the city of New York there is today, no newspaper, no organized group of people, whether real estate, vacant land, or taxpayers’ associations, there are no corporations of the large lenders or insurance companies or banks that are opposing this districting work,” observed Edward Bassett at the Cleveland planning conference.⁵⁸

A new era was born — the post-zoning era. It was an era in which nuisances were predicted and proactively addressed legislatively, rather than handled by courts after the harm had occurred. It would

usher in the greatest urban growth and development story in American history and spread like wildfire across the nation.

V

The Viral Spread of New York City Zoning

This paper is intended to tell an origin story, but no origin story is complete without recognition of what follows. What followed in America was a natural outflow of a successful effort in America's largest city.

As Veiller recognized that summer at the Cleveland planning conference:

Nor is the value of their work by any means limited to New York City.... [L]ike many other things in that great center of population, what is done there is of value to the whole country.... [W]ith the adoption of such regulations in New York City, a wave will spread throughout the entire land, even into smaller cities, a wave of public sentiment for the adoption of similar regulations... [i]n many cities throughout the country people will say as they do so often: 'If New York can do this, why can't we?' and they will start in and begin to district their own towns.⁵⁹

The drafters of the New York City Zoning Ordinance were never charged with creating a national system of zoning unique among the nations of the world. They were not focused on copying what Germany had done as it regulated outward from the center of the city in waves, or what they dubbed zones, in the decades prior. They had undertaken a block-by-block review of the city to determine appropriate uses and scale.⁶⁰ This was always about New York City.

They did not hoist this form of granular anti-crowding legislation on communities of all sizes, types, and geographies in America. Yet New York City was a standard-bearer, and curious eyes from across the nation were looking to New York for direction on how to address an urbanizing nation. As Dayton, Ohio, architect Louis Lott cautioned at the Cleveland planning conference:

If there is any one thing that ought to impress any of those present, it is the fact that the New York districting report is extremely involved and that if less developed communities in the country will take up this very important matter at once, their labors and the districting laws can be very much simplified as compared to the effort and final results in behalf of this matter in New York City.⁶¹

One of the first cities to adopt New York City–style zoning was St. Louis in 1918. At the time, St. Louis was a booming industrial river city. St. Louis went further than New York City and added a district called “Industrial District.”⁶² New York City relegated all industrial uses to an unrestricted catch-all district, which resulted in incompatible land uses within that district. St. Louis preferred to place industrial uses in their own district, forcing a separation of uses and assuming that workers would commute to designated areas of the city. The treatment of industrial uses was as important an issue as any other at the time. “To sum up, industrial zoning is well-nigh the most important field of zoning in a great city. It is also the most difficult field to manage accurately,” remarked Edward Bassett at the St. Louis conference.⁶³ It was an issue that was not yet settled in New York City, but other cities preferred the tidier St. Louis approach, and separating industrial land uses from residential land uses would be the ultimate issue in the seminal *Euclid* case. It also, for the first time, created commuter districts.

State enabling statutes followed and set the stage for a proliferation of local zoning ordinances in 21 states from coast to coast and the District of Columbia.⁶⁴

Other large cities followed in adopting zoning ordinances based on New York City’s, including Los Angeles, San Francisco, Washington, D.C., Atlanta, Minneapolis, Rochester, and Milwaukee.⁶⁵ As of 1921, only 48 communities covering fewer than 11,000,000 Americans had adopted zoning codes.⁶⁶ By the end of 1923, that number had grown more than fourfold, to 218 communities covering more than 22,000,000 Americans.⁶⁷ In 1922, the Department of Commerce under Commerce Secretary Herbert Hoover rolled out A Standard

State Zoning Enabling Act, promulgated by a committee of familiar names including Bassett, Olmsted, and Veiller.

By 1923, all of Cleveland's major streetcar suburbs had adopted zoning, including Cleveland Heights, University Heights, and Shaker Heights. But the most famous of them turned out to be Euclid, Ohio, which adopted its storied zoning code in 1922.

By 1925, zoning ordinances had been adopted in just about every inner-ring suburb of Greater New York City, including New Rochelle, Rye, Mount Vernon, Scarsdale, Yonkers, and White Plains, to name a few.⁶⁸ Likewise, zoning proliferated in the New Jersey cities of Jersey City, Montclair, Orange, Passaic, and Rutherford, among dozens of others.⁶⁹ In the Connecticut suburbs, Greenwich, Fairfield, Bridgeport, and Norwalk had all adopted zoning ordinances.⁷⁰

The decade following the adoption of New York City's zoning ordinance was one of discovery. City planners were pushing the regulatory envelope. They grappled with how far they could go before courts decided they had exceeded the police power. Was regulating uses within the police power? Was regulating front-yard setbacks? Were aesthetics fair game?

In 1925, nearly ten years after the adoption of the New York City Zoning Resolution, Bassett hailed zoning a success and credited that success to four things: (i) the reasonableness of the regulations; (ii) the inclusion of a variance escape valve for the prevention of arbitrariness; (iii) the ability of the Board of Estimate to amend the zoning maps; and (iv) the public education undertaken by the Zoning Committee of New York.⁷¹ "These elements of success, comprising reasonableness, liberty of appeal, flexibility, and education, are essential to the permanence of all zoning."⁷² Bassett summed up this epochal evolution of property rights as follows: "Ten years ago in every large city of our country a landowner could put up a building to say any height, in any place, of any size, and use it to any purpose, regardless of how much it hurt his neighbors."⁷³

During the early period of zoning, each time regulations were attempted, they were tested. Courts all over the land, but especially

in New York, Ohio, and Massachusetts, were grappling with these weighty constitutional issues. The United States Supreme Court had weighed in earlier in the decade, largely upholding zoning regulations addressing nuisances but not yet extending the police power to all forms of zoning — particularly the segregation of like properties by use. As of 1925, no court had declared any portion of the New York City Zoning Resolution invalid, a point of pride for its primary author, attorney Edward Bassett.⁷⁴ As we know, the questions would finally be answered in *Village of Euclid v. Ambler Realty Co.* in 1926. Zoning was so commonplace in New York City that the United States Supreme Court's decision upholding zoning was relegated to a short article on page 17 of the November 23, 1926, *New York Times*. The next day, on page 22 of the paper, attorney Edward Bassett declared a “final and overwhelming victory for comprehensive zoning.”⁷⁵ Bassett was finally vindicated. Zoning was the law of the land, and it would spread like wildfire across it.

The Standard State Zoning Enabling Act made the copying easy, and the *Euclid* decision made it safe. By 1930, hundreds of municipalities had adopted zoning; within a generation, thousands had. Very few of them conducted anything resembling the Heights of Buildings Commission's diagnostic work. They did not need to, because the template was free, the courts had blessed it, and the neighboring town had already adopted it. A regulatory instrument engineered for the densest square mile in North America became the default operating system for rural towns, streetcar suburbs, and county seats that had never seen a twenty-story building and never would.

In the ensuing years, zoning codes took shape in communities all across the nation, crowded and uncrowded alike. Yet the fundamentals of zoning that were baked into the American constitutional system remained at its core.

While substantial progress has been made in zoning techniques there has been little or no change in the basic form of zoning regulations. Zoning still involves the administration of three (3)

major types of regulations; namely, (1) uses which may be made of the land, commonly called use regulations; (2) the maximum height to which buildings may be erected (height regulations); (3) the minimum amount of open space that must be provided around structures, as well as the minimum lot area upon which residential facilities can be erected (area regulations). In recent years, the regulations have been expanded to include minimum floor area requirements for dwellings in order to preserve the character of development in residential districts.⁷⁶

VI

Conclusion

Indeed, over a century of zoning regulations have expanded its reach into every aspect of development, yet fundamentally zoning remains a product of early twentieth-century New York City. All American zoning has its structural roots in New York City's system of districting. Anti-crowding legislation is on the books in crowded and uncrowded places alike.

The 1916 ordinance deserves more credit than it usually receives. It was not a work of ideology. It was a custom-tailored solution to specific, observable problems: towers walling off light and air from the streets below, garment lofts crowding a retail district, a city growing faster than its infrastructure could absorb. Bassett and the commission studied the conditions, calibrated the tools to the problems, and drafted machinery that included height districts, use districts, and area districts, all purpose-built for Manhattan in the 1910s.

Methodologies have evolved as codes have shifted from a use-only focus to regulating building form, but at its core zoning is a system put in place to control decisions about the way we coexist. To coexist, we all give something up for the good of others. This give and take is at the core of coexistence. Government's role is to step in when private actors cannot or will not regulate themselves. The building frenzy in New York City in the early twentieth century reached a fever pitch that could no longer be self-regulated.

Zoning, while not always used to promote equitable outcomes, is at its origin about equity. Its roots were literally aimed at leveling the playing field — to reduce the ability of neighbors to take advantage of their neighbors. Whether this has resulted in too much uniformity and monotony is up for debate. Whether the United States would have been better off without zoning is open for debate,

but while creating some harms, zoning has fended off many others in the name of health, safety, and welfare. For that, in this hundredth year of *Euclid*, we must tip our hats to the men of New York City who conceived this uniquely American system of coexistence.

Zoning is first essential to the securing of a measure of orderliness in the building of the city. The common sense of the average citizen leads to a degree of order in the home, the store and the factory that is all but lacking in the life and work of the community as a whole. For want of a well-considered plan of building development each man builds without reference to his neighbor. The result is chaotic. Haphazard growth is inefficient, wasteful and ugly. Why not use the same forethought and care in the building of our community that each same man uses in the building of his individual home or factory? Zoning is the direction of building development along orderly and well-considered lines of city growth. On the economic side, zoning means increased industrial efficiency and the prevention of enormous waste. On the human side, zoning means better homes and an increase of health, comfort and happiness for all people.⁷⁷

The challenge in American zoning is not that this framework existed. It is that zoning became a solution in places without the problem it was originally intended to address. Open a typical American zoning code today and New York City's 1916 zoning solution is visible on nearly every page.

Many codes still carry the 1916 hierarchy: residential at the top, everything "lower" permitted downward. Setback planes, height districts, and lot coverage standards descend directly from a fight about skyscraper shadows on lower Broadway. In most communities they now function as blunt instruments, regulating buildings the drafters never imagined and failing to regulate the ones residents care about.

The 1916 commission had it right: land use regulation works when the tools are fitted to the problems, and the problems are studied before the tools are chosen. What most American communities are administering today is not a considered judgment

about their own conditions. It is a photocopy of a photocopy of a solution to Manhattan's problems in 1916, amended at the margins for a hundred years without anyone returning to the original question.

That question is the one Bassett's commission asked, and most communities have not: *What are the actual conditions here, and what regulatory tools do they require?*

The issue for today is not whether your community should have zoning. It is whether anyone, in the last century, has verified that the zoning you have still fits the place you are in now. In most American communities, zoning codes were inherited, not calibrated. The second century of American zoning needs what New York City gave it in the early 1900s — a careful assessment of the problems and thoughtfully tailored solutions.

New York City has among the most skyscrapers in the world. Zoning did not stop the skyscraper, nor did it solve the problems of light, air, and congestion that prompted it. The skyscraper has evolved, as has Fifth Avenue, but the system of laws left in its regulatory wake largely has not.

About the Author

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4. *Report of the Heights of Buildings Commission*, p. 21.
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10. *Id.*
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27. *New York Times*, July 13, 1913.
28. *New York Times*, July 20, 1913.
29. *New York Times*, September 21, 1913.
30. *New York Times*, December 1913.
31. *New York Times*, November 30, 1913.
32. *New York Times*, July 26, 1914.
33. *New York Times*, January 1, 1914.
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35. *Id.*, at 15–16.
36. *Id.*, at 69.
37. *Id.*, at 71.
38. *Id.*, at 72.
39. For more on the life of George McAneny, see georgemcaneny.com.
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45. *New York Times*, February 28, 191[].
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- 67. *Id.*
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